

Notice of Supplemental Evidence (Exhibit 7) and Addendum to Master Timeline (Exhibit 3)

Subject [REDACTED] / Prior Lake-Savage Area Schools (ISD 719)

Legal Authority: Title IX of the Education Amendments of 1972 (34 C.F.R. Part 106); Minnesota Administrative Rule 3512; Minnesota Professional Educator Licensing and Standards Board (PELSB) regulations; Family Educational Rights and Privacy Act (FERPA) provisions regarding Legitimate Educational Interest; Minnesota Reporting of Maltreatment of Minors Act (Chapter 260E).

Notice of Addendum to Exhibit 3

This filing formally introduces newly discovered evidence regarding the licensure status of the District's Title IX Coordinator and Decision-Maker, Emily Herman, designated herein as **Exhibit 7**.

Furthermore, this document serves as a formal addendum supplementing the "11/2024 - 12/2024 Denial of Accommodations" entry within the previously submitted **Exhibit 3 Timeline Grid**. The evidence contained in Exhibit 7 proves that the District's December 5, 2024 denial of a specialized, trauma-informed forensic interviewer (CornerHouse) was not merely a procedural disagreement. Rather, it was a calculated strategy—executed under the authorization of District leadership and legal counsel—to prioritize institutional risk management by keeping the investigation internally controlled by an unlicensed HR official, thereby bypassing state-regulated clinical safety protocols and establishing a fundamental lack of Legitimate Educational Interest.

Table of Evidence (Exhibit 7)

Evidence Type / Claim Substantiated	Document / Attachment Name	Date	Bates Page
Lack of MN Educator License	image_a4771b.png (PELSB License Lookup Screenshot)	May 10, 2026	PLSAS-EX7-001
Investigator Role & Official Title	March 13 2025 E. Herman Response.pdf (Attached: "2024 Title IX Sexual Harassment Complaint - Summary Report")	March 13, 2025	PLSAS-EX7-002 – PLSAS-EX7-006
Denial of Trauma-Informed	20241213 OriginalEmail.pdf	December 5, 2024	PLSAS-EX7-007

Evidence Type / Claim Substantiated	Document / Attachment Name	Date	Bates Page
Interviewer	(Contains the 12/5/2024 email stating District staff possess "proper training")		
Characterization of Parent "Refusal"	March 13 2025 E. Herman Response.pdf (Attached Summary Report, citing Complainant "denied multiple attempts" as grounds for dismissal)	March 13, 2025	PLSAS-EX7-005
Arbitrary Enforcement of Appeal Deadline	May 9 2025 E. Herman Letter (Denial of appeal using undisclosed procedural deadlines)	May 9, 2025	PLSAS-EX7-008
Unilateral Legal Interpretation (MGDPA/FERPA)	June 12 2025 E. Herman Response (Invoking privilege and dismissing record amendment requests)	June 12, 2025	PLSAS-EX7-009

I. Overview of Exhibit 7

This exhibit documents the unlicensed status of Emily Herman, who served simultaneously as the Executive Director of Administrative Services, the Title IX Coordinator, the sole Title IX Investigator, and the ultimate Title IX Decision-Maker for Prior Lake-Savage Area Schools during the 2024-2025 investigation regarding [REDACTED]. This document establishes that Ms. Herman operated in direct violation of the federal Title IX separation-of-roles mandate, fundamentally lacked the state-regulated administrative licensure required to make pedagogical determinations, and systematically exceeded her authority by acting as the District's de facto legal counsel.

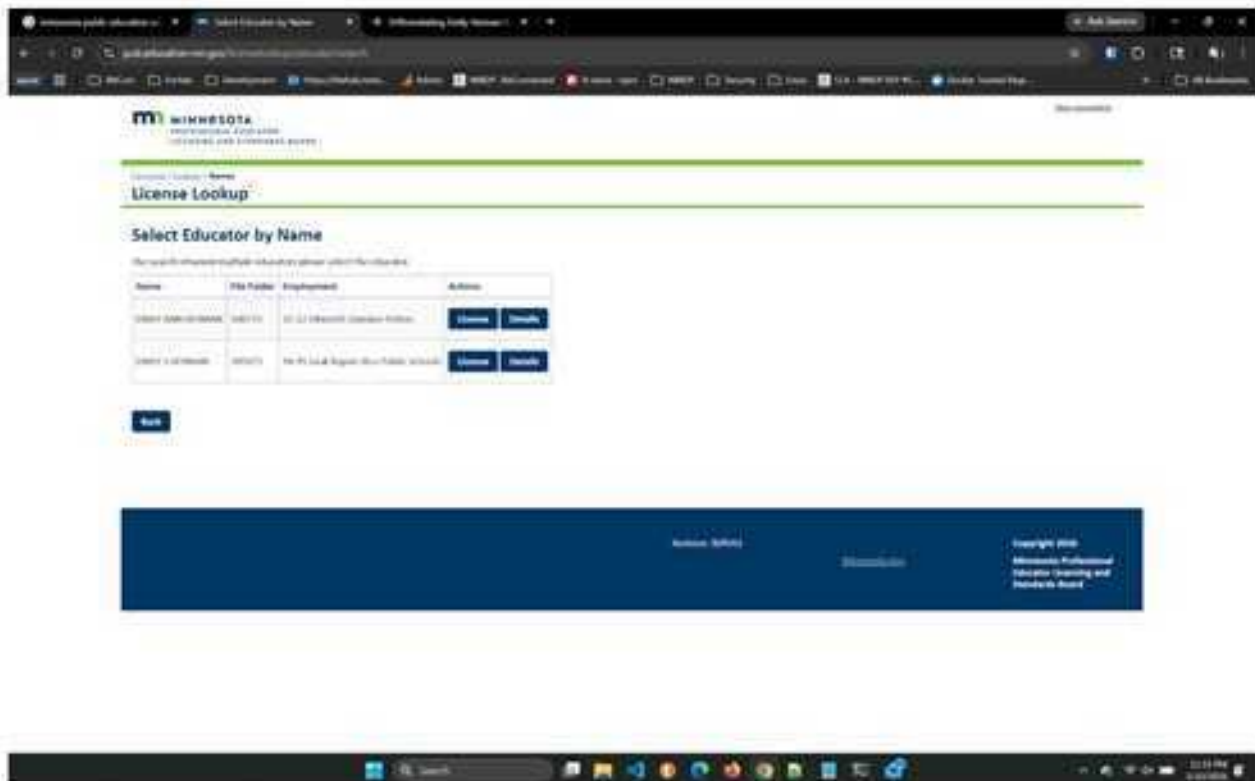
II. Contemporaneous Evidence of Lack of Licensure

A contemporaneous search of the Minnesota Professional Educator Licensing and Standards Board (PELSB) official License Lookup database, conducted on May 10, 2026, confirms that no Emily Herman is licensed or employed by Prior Lake-Savage Area Schools. The search query for the educator by name returned only two historical and unrelated records, neither of whom correspond to the District's Title IX Coordinator:

- **EMILY ANN HERMAN** (File Folder: 500772) - Employment: 21-22 Dilworth-Glyndon-Felton
- **EMILY S HERMAN** (File Folder: 345073) - Employment: 94-95 Sauk Rapids-Rice Public

Schools

This establishes that the individual assigned by the District to govern a severe grievance process possessed no state-regulated clinical, pedagogical, or administrative licensure.



III. Procedural Conflicts and Decision-Maker Incompetence

A. Violation of Federal Separation of Roles Mandate

Under the 2020 Title IX Regulations (34 C.F.R. § 106.45), which governed this grievance process, a school district is explicitly prohibited from allowing the Title IX Coordinator or the Title IX Investigator to simultaneously serve as the Decision-Maker. By acting as the Coordinator who managed the intake, the Investigator who gathered (and omitted) facts, and the sole Decision-Maker who ultimately dismissed the case, Ms. Herman operated in a structural conflict of interest that violated fundamental procedural due process.

B. Pedagogical and Statutory Incompetence as Decision-Maker

Beyond the federal prohibition on multiple roles, Ms. Herman's lack of a state administrative or educator license rendered her fundamentally unqualified to serve as the Decision-Maker. In

Minnesota public schools, making legally binding disciplinary, pedagogical, and educational placement decisions over students is an authority reserved for state-licensed administrators governed by the Board of School Administrators (BOSA) under Minnesota Administrative Rule 3512. As an unlicensed HR director, she possessed no state-regulated authority to make complex behavioral and clinical determinations regarding a 12-year-old student.

IV. Systemic Overreach: Exceeding Administrative and Legal Authority

Compounding her lack of licensure, Ms. Herman repeatedly exceeded the bounds of her administrative role by making unilateral legal, procedural, and statutory determinations that strictly require licensed administrative authority, legal counsel, or adherence to statutory protocols.

A. Unilateral Legal Interpretation of FERPA and MGDPA

Ms. Herman acted as the final legal authority on complex statutory data requests. On June 12, 2025, she personally invoked "attorney-client privilege," the "work-product doctrine," and "civil investigative data" to withhold records. Furthermore, she improperly classified formal requests for record amendments (a statutory right under FERPA and MN Stat. § 13.04) as mere "demands for the District to generate data," thereby sidestepping the legal requirement to offer a hearing.

B. Arbitrary Enforcement of "Phantom" Appeal Deadlines

In her May 9, 2025 letter, she denied the Complainant's request to appeal the Title IX dismissal by enforcing an appeal deadline that she had failed to disclose in the original March 13 dismissal notice. By unilaterally closing the appeal window based on a procedural requirement the District violated, she exceeded her administrative authority and denied federally protected due process.

C. Unlicensed Legal Determinations on Title IX Applicability

In May 2025, Ms. Herman summarily rejected a submission by declaring it was "not a formal Title IX Complaint pursuant to the applicable regulations." Determining the legal threshold of a Title IX complaint requires specific administrative competence. An unlicensed HR administrator unilaterally declaring the District has "no obligation to respond" to a complaint referencing retaliation is a severe overstep of investigative authority.

D. Categorical Denial of "Legitimate Educational Interest"

Clarifications

When the Complainant requested an explanation of how the District could share the student's protected trauma data with legal counsel without a disclosure log, Ms. Herman bypassed the required pedagogical assessment by issuing a blanket determination that legal counsel automatically possessed a "legitimate educational interest," failing to recognize that institutional liability defense does not automatically equate to a pedagogical interest in the student.

V. Impact on Disciplinary and Maltreatment Investigations

Ms. Herman's lack of state licensure fundamentally undermines her capacity to act as the lead investigator and decision-maker for complex student discipline and policy-related investigations, specifically regarding the HOMS report and the internal review of the District's failure to file a maltreatment report.

A. The Accountability Void in the HOMS Report

- By placing an unlicensed official in the dual roles of Title IX investigator and decision-maker, the District effectively insulated its Title IX process from state ethics sanctions. PELSB and BOSA only hold jurisdiction over licensed professionals. Formal ethics complaints regarding the suppression of evidence or failure to protect student safety are consequently shielded from state regulatory oversight.

B. Evaluating Licensed Professionals in Mandated Reporting Failures

- Investigating a failure to report maltreatment requires determining if licensed teachers and administrators violated their ethical and statutory duties under Minnesota's Reporting of Maltreatment of Minors Act. Allowing an unlicensed HR administrator, who is not bound by PELSB ethical codes, to serve as the sole judge of whether licensed clinical and educational staff met their professional reporting thresholds constitutes a severe structural mismatch.

VI. Deliberate Indifference and Institutional Protectionism

A. Presumption of Legal Knowledge and Calculated Insulation

It is procedurally standard for school district legal counsel to audit the credentials and statutory authority of internal personnel managing severe Title IX grievances. The intentional utilization of

an unlicensed HR official to serve as the sole Decision-Maker effectively shielded the District's process from external state-level ethical accountability. This ensured that the process of engineering a dismissal remained immune to state licensing board sanctions.

B. Superintendent Michael Thomas's Knowledge and Authorization

As the chief executive officer of the District and a licensed administrator himself, Superintendent Michael Thomas holds ultimate responsibility for the district's organizational structure and the delegation of authority. It is an administrative certainty that Superintendent Thomas was fully aware that his Executive Director of Administrative Services lacked a state educator or administrative license. By knowingly delegating the authority to evaluate student discipline, statutory maltreatment, and complex Title IX grievances to an unlicensed HR official, Superintendent Thomas authorized a structural bypass of standard educational and clinical due process. This elevates the grievance from the actions of a single employee to a systemic, district-level structural failure authorized at the highest level of administration.

C. Absence of Legitimate Educational Interest

A "legitimate educational interest" necessitates that a district's actions are driven by the pedagogical or developmental welfare of the student. Knowingly granting an individual—whose primary expertise is in human resources and risk management—the unilateral authority to assess a child's psychiatric trauma and execute legal determinations proves the District prioritized controlling institutional liability over resolving the harm.

VII. Factual Indicators of Bad Faith and Structural Interference

The documentary evidence establishes clear, factual indicators that the grievance process was executed in bad faith and structurally designed to interfere with statutory protections.

A. Procedural Bad Faith and Denial of Due Process

The District's enforcement of an appeal deadline on May 9, 2025, that was intentionally omitted from the original March 13, 2025 dismissal notice constitutes the execution of a procedural trap. Closing a grievance based on an undisclosed deadline factually establishes the willful deprivation of due process and a bad-faith administration of the Title IX grievance procedure.

B. Weaponization of Known Clinical Trauma

The District was formally notified that the 12-year-old Complainant was actively enrolled in a Partial Hospitalization Program (PHP) for severe trauma. Denying the use of a specialized forensic interviewer (CornerHouse) and subsequently using the parent's protective refusal of an

unsafe, unlicensed interview environment as the sole justification to dismiss the harassment complaint factually demonstrates that institutional risk management superseded the known clinical safety of the student. Using the student's clinical status to engineer a dismissal constitutes objective deliberate indifference.

C. Structural Interference with Mandated Reporting (MN Chapter 260E)

By assigning an unlicensed HR official to conduct an internal review of licensed educators' mandated reporting duties under the Reporting of Maltreatment of Minors Act (Chapter 260E), the District structurally intercepted the statutory process. This internal mechanism bypassed the statutory authority of the Minnesota Department of Education (MDE) and local child welfare agencies, effectively creating an internal barrier designed to clear staff of their statutory obligations and shield the District from external child welfare liability.

March 13, 2025 Response11 messages

Cc: Michael Thomas <mthomas@plsas.org>

Please see the attachments below for responses to your recent emails.

Thank you,
Emily

**Emily Herman**

Executive Director of Administrative Services

Title IX Coordinator & Human Rights Officer

Prior Lake-Savage Area Schools

952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

2 attachments**2024 Title IX Sexual Harassment Complaint - Summary Report.pdf**

57K

**March 13 2025 E. Herman Response.pdf**

118K

Cc: Michael Thomas <mthomas@plsas.org>

As a follow-up, after continued research and receiving additional support from Google Administration, our tech department was able to generate the attached report today.

As noted in the letter sent yesterday, we remain unclear about what you are specifically seeking with a request for a "full email log." However, we wanted to share this report as a new data option, which reflects email exchanges between

Thank you,
Emily

PLSAS-EX7-0009



Emily Herman
Executive Director of Administrative Services
Title IX Coordinator & Human Rights Officer
Prior Lake-Savage Area Schools
952-226-0021

The information contained in this electronic message may be confidential information and is intended only for the use of the individual(s) to whom this electronic message is addressed. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this electronic communication or any attachment thereto is strictly prohibited. If you have received this electronic communication in error, you should immediately return it to us and delete the message from your system. Thank you.

[Quoted text hidden]



SeanLogs021225to031425.xlsx
27K

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

Thank you for your patience awaiting my response - I note I have been out of town and without access to email for the past two weeks. This looks like a great start - when can I expect to receive a fully responsive dataset that includes all emails I have sent, including the original emails reporting the sexual assaults?

Additionally, while I got in late last night and have yet to have a chance to fully review your earlier responses, it appears while preparing your responses to my data request you had time to complete the title ix investigation and come to a dismissal decision. Please consider this notification of my intent to appeal - I will follow up with full details later this evening, but at a bare minimum I would call out that the district was aware that a police investigation had been conducted into the matter, and never once expressed to it was having difficulty identifying the perpetrator or asked any follow-up questions. Additionally, I note the dismissal calls out [REDACTED] refused to submit an electronic response to interview questions, whereas the actual offer you made stated -

"We appreciate your concern with interviewing for your daughter. As mentioned previously, our investigation is separate from other entities and therefore we cannot use an outside interviewer for our process. We would still appreciate the opportunity to meet with you and your daughter either in-person or virtually. However, we would like to offer an alternative option. If you still do not wish to interview with us, we could send a set of written questions for our initial interview that you could complete with your daughter. **It would be best that the written responses are either dropped off at or mailed to Hidden Oaks or District Services Center to either [REDACTED] or myself.** This would ensure the email quarantine process would not impede the delivery of the responses."

Thank you,

[Quoted text hidden]

Cc: Michael Thomas <mthomas@plsas.org>

Hello Emily,

It has been almost a month since I have heard from you. When can I expect to receive the full Google Workspace Email Log export? An update on my appeal?

PLSAS-EX7-0010

I note both Google and ChatGPT put the time it would take a Google Workspace administrator to generate this data at between 20 minutes to an hour and a half, with the later estimate including 20 minutes for the administrator to locate, read, and understand the instructions. Can you help me understand why it has taken months?

Thank you,

[Quoted text hidden]

2 attachments

-  **Google_Workspace_Email_Log_Timing_Estimate.pdf**
3K
-  **GoogleWorkspaceLogInstructions.pdf**
312K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

2 attachments

-  **Data Request Form.pdf**
82K
-  **Formal Data Request.pdf**
164K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached. Also, I note there was an error in the "Data Request Form" submitted earlier today - please provide

Thank you,

[Quoted text hidden]

2 attachments

-  **Formal Request - 506-1.pdf**
143K
-  **PLSAS_506.1 - Bullying_Prohibition.pdf**
199K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

-
-  **Formal Request Weapons Policy.pdf**
265K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **Data Correction - Weapons Investigation.pdf**
703K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached Formal Title IX complaint+request for appeal process

[Quoted text hidden]

 **titleixcomplaint_merge.pdf**
808K

Cc: Michael Thomas <mthomas@plsas.org>

Please see attached

[Quoted text hidden]

 **forwarding_activity_in_logs.pdf**
1598K

Cc: Michael Thomas <mthomas@plsas.org>

I am writing to follow up on a batch of data subject requests I submitted to the District under the Minnesota Government Data Practices Act (Minnesota Statutes Chapter 13). I emailed these requests on **May 5, 2025** and **May 6, 2025**, respectively. As of today (May 7, 2025), more than 48 hours after the first request, I have not received any acknowledgment or confirmation that the District has received these requests. I am concerned about the lack of response, especially given the timely response requirements in Chapter 13.

Contrary to District framing, the timelines and response expectations I put forth are not arbitrary or unreasonable. Minnesota law **obligates prompt action** on data requests. In particular, **Minn. Stat. § 13.03, subd. 2** requires every government entity to establish procedures to ensure that requests for government data are handled "in an appropriate and prompt manner" [revisor.mn.gov](https://www.revisor.mn.gov). Furthermore, because my requests are for data about myself (i.e., I am the data subject), the timeline in **Minn. Stat. § 13.04, subd. 3** applies. That provision clearly states that the responsible authority "**shall comply immediately, if possible**" with a data subject's request, "**or within ten days of the date of the request, excluding Saturdays, Sundays and legal holidays, if immediate compliance is not possible.**" [revisor.mn.gov](https://www.revisor.mn.gov) In other words, the Data Practices Act expects a very prompt response for requests made by the subject of the data – up to a maximum of ten business days.

Failure to promptly acknowledge or respond to a data request is not a trivial matter. The Minnesota Department of Administration has issued guidance and advisory opinions underscoring that agencies must respond timely and cannot ignore requests. For example, in **Advisory Opinion 19-002 (2019)**, the Commissioner of Administration opined that when a state board "**did not reply to the data request**", that "**is not an appropriate response to a request for access to government data.**" [content.govdelivery.com](https://www.content.govdelivery.com) In another opinion, the Commissioner emphasized that an entity's failure to provide a data subject with access to their data within the ten-business-day window violates the statute – the City in that case "**did not respond appropriately**" when it "**did not respond within 10 business days**" as required by Minn. Stat. § 13.04mn.gov. These opinions make clear that **prompt communication and compliance** are mandatory obligations under Chapter 13, not optional courtesies.

PLSAS-EX7-0012

Even if gathering the requested data might take up to the ten days allowed by law, **basic acknowledgment of receipt** is widely regarded as a minimum best practice. Promptly confirming that you received my request and are processing it is important for transparency and to assure me that the request is being handled. Many government entities follow this practice of acknowledging requests upon receipt as part of their Data Practices procedures [wlssd.com](https://www.wlssd.com). The lack of any acknowledgement from the District thus far raises concerns that my requests may not have been received or logged, or that they are not being handled in the statutorily required manner.

In light of the above, I respectfully request the following:

- **Immediate acknowledgment of receipt** of my May 5 and May 6 data requests. Please confirm that these email requests were received by the responsible authority or designee, and the dates on which they were received.
- **Estimated timeline for compliance with my requests.** Please inform me when I can expect to inspect or receive copies of the requested data. As noted, Minn. Stat. § 13.04, subd. 3 requires that data subject requests be fulfilled "**immediately, if possible,**" and absolutely no later than ten business days from the request date [revisor.mn.gov](https://www.revisor.mn.gov). An indication of when the District plans to provide the data (or an explanation if more time is needed for a complex request) will help ensure we remain within statutory compliance.

I want to emphasize that **these requests were properly submitted under Chapter 13**, and the District has a legal obligation to respond **promptly and fully**. At minimum, a timely acknowledgment is expected. I am eager to cooperate and willing to clarify any aspect of my requests if needed. However, I need confirmation that the District is aware of the requests and is moving forward to fulfill them as required by law.

Thank you for your prompt attention to this matter. I look forward to your immediate acknowledgment and an update on the processing of my data requests. If there is any reason for the delay or if additional information is required from me, please let me know right away. Prompt communication will help avoid any further issues and ensure compliance with the Minnesota Government Data Practices Act.

Sincerely,

[Redacted signature]

[Quoted text hidden]

2024 District Wide Title IX Reporting Complaint - Summary Report

Subject: Title IX Sexual Harassment Complaint

Date: November 1, 2024 (email failed) received on November 15, 2024

Investigator: Emily Herman, Executive Director of Administrative Services

Introduction: [REDACTED], parent of a former student, alleges that his student (CO) was subject to harassment on the basis of sex, sexual orientation.

Allegations:

1. SO claims that CO was subject to physical and verbal abuse by peers including homophobic name in reference to sexual orientation
2. SO claims that CO was subject to inappropriate touching by another student

Investigation Process: The investigation involved:

- Reviewing SO's complaint.
 - SO denied multiple attempts by District to conduct an interview or have CO submit answers to interview questions electronically
- Interviewing CO's assigned teachers
- Interviewing Dean
- Interviewing CO's Counselor
- Interview CO's peers that District could identify
- Review of District Policy 413, 506, and 522
- Consult with Legal regarding Title IX

Findings:

The District made multiple efforts and offered various methods for CO to provide information regarding the complaint, including the option to submit written responses to questions instead of participating in a live interview. However, SO declined for CO to provide this information. As a result of the District's inability to obtain details from CO about the allegations, the investigation lacked crucial information such as witness names, involved students, respondent/s information, timelines, locations, and factual evidence necessary for a thorough examination. It was communicated to SO that the denial of interview substantially impacted the timeline and district's ability to look into the allegations.

Without sufficient initial details, the District interviewed CO's counselor, dean, and assigned teachers to identify potential peers for interviews and to determine if any concerns had been witnessed or reported by staff members. All interviewed staff stated that neither CO nor other students reported any concerns related to the allegations. Also, all interviewed staff did not report witnessing any concerning interactions between CO and peers.

Three students were identified as potential peers of CO and were subsequently interviewed. These students stated that CO had mentioned generic concerns about peer interactions on one occasion during her time at the school and CO did not provide specific details. The only specific concern reported—regarding self-harm—was reported to student support services and addressed. None of the students reported witnessing or hearing any concerning interactions between CO and peers. After CO was no longer enrolled with the District, one student, however, mentioned hearing similar allegations to those in the report SO submitted. This student was informed by CO during winter break, nearly two months after CO had left the District.

The District also interviewed one peer that was potentially the alleged offender. That individual confirmed knowing CO and having two classes with her, but denied any inappropriate behavior, including touching CO, using homophobic or hurtful language, or causing CO to feel uncomfortable.

Given the lack of concrete details in the allegations, including any specifics on the alleged respondent/s, the District conducted the investigation to the best of its ability. However, the interviews conducted did not provide evidence to identify respondent/s and/or substantiate the allegations.

Conclusion with recommendations: In conclusion, while the District made diligent efforts to investigate the allegations without the vital details for the allegations, it was unable to identify the respondent and/or find evidence to substantiate the allegations. In the absence of additional information from CO identifying the respondent/s and/or providing essential details, this complaint is dismissed due to the District's inability to identify the respondent/s.



March 12, 2025

Dear Mr. [REDACTED]

I am writing in response to your two emails dated February 28, 2025, and your email from March 3, 2025. The District has made every effort to provide you with the requested information promptly while managing the numerous other responsibilities of our staff. As outlined in my expected response timeline, I am providing this response on the anticipated date of March 13, 2025.

1. Demands for unredacted files

The District denies this request. All responsive data has been provided. Redactions of private educational data on students other than your child have been made pursuant to Minn. Stat. § 13.32. Private personnel data has been redacted pursuant to Minn. Stat. § 13.43.

2. Multiple requests to create data

In the three emails referenced, you have made several repetitive demands for the District to generate data. Under the Minnesota Government Data Practices Act, the District is not obligated to respond to inquiries, engage in debates, or create new data in response to such demands. To date, existing responsive data has been provided in accordance with the evolving requests and numerous emails received. The District has consistently responded to requests in good faith, despite the complaints and requests continuing to evolve without a clear or defined resolution being articulated from your end.

3. Repeated data request

[REDACTED]

have been provided in PDF format, along with PST file format. The PST file enables the recipient to access the requested header information. Please note that when the District conducts email searches between specific addresses, the system does not filter or block any emails, nor does it retain rejected or undelivered messages. As such, the District has no further responsive data beyond what has been provided.

Additionally, the District is unclear on what further information you are requesting regarding a "full email log." You have already received the full set of emails from our system in PDF format, as well as the PST file, which allows you to review the requested header details.

4. Data request clarification

In one of your emails, you requested a full, unredacted version of page 4 of the "SO Data Request File 3," which states "Document is unavailable." This page pertains to the audio file retrieved by the system as part of the data request. When the system processes the data request into a PDF, it generates a corresponding page for the audio file. Please note that the audio file was included in the email sent on February 13, 2025. There is no additional responsive data for this request.



5. New public data request

Upon reviewing the three emails, we have identified one new public records request for "any records, policies, or training materials addressing staff responsibilities when witnessing acts of violence or harassment." We will begin gathering the requested data and respond as soon as possible. Since neither you nor your student is the subject of this request, it will be processed in accordance with the procedures for existing public records requests. As noted above, all responsive data for the other requests outlined in the three emails has already been provided.

6. Investigation into claims of sexual harassment and assault

The District made several attempts to gather information from your student, offering various options, including written responses in lieu of a live interview, but all attempts were declined. As a result, the investigation was limited by the absence of crucial details such as witness names, timelines, and evidence. Nevertheless, the District conducted a thorough investigation by interviewing staff and students associated with your student. Despite these efforts, the investigation could not substantiate the allegations due to the lack of concrete evidence and inability to identify the respondent/s. Attached you will find a written determination.

Closing

Going forward, the District will only respond to data requests that are properly submitted. To facilitate effective communication, we strongly encourage you to use the Data Request Form, which can be accessed here: [Data Request Form](#)

As outlined in Dr. Thomas's response on January 24th, the District is unable to continue addressing repeated and evolving complaints submitted under various headings through multiple, demanding emails with increasingly short and arbitrary timelines. District staff have consistently addressed each of your concerns in a timely and good-faith manner. Despite these efforts, you continue to seek debates regarding District policies and applicable law. The District is not engaged in such debates. Should you disagree with the District's processes, you are welcome to seek relief through the appropriate entities.

Sincerely,

Emily Herman
Executive Director of Administrative Services

CC: Dr. Michael Thomas, Superintendent

Itemized Redaction List

Bates/Page	Line	Redaction reason
PLSAS-EX7-001	4	Redacted to protect personal privacy.
PLSAS-EX7-005	27	Redacted to protect personal privacy.
PLSAS-EX7-0009	2	Redacted to protect personal privacy.
PLSAS-EX7-0009	6	Redacted to protect personal privacy.
PLSAS-EX7-0009	28	Redacted to protect personal privacy.
PLSAS-EX7-0009	35	Redacted to protect personal privacy.
PLSAS-EX7-0009	5	Redacted to protect personal privacy.
PLSAS-EX7-0009	27	Redacted to protect personal privacy.
PLSAS-EX7-0009	30	Redacted to protect personal privacy.
PLSAS-EX7-0009	8	Redacted to protect personal privacy.
PLSAS-EX7-0010	15	Redacted to protect personal privacy.
PLSAS-EX7-0010	39	Redacted to protect personal privacy.
PLSAS-EX7-0010	16	Redacted to protect personal privacy.
PLSAS-EX7-0010	40	Redacted to protect personal privacy.
PLSAS-EX7-0010	27	Redacted to protect personal privacy.
PLSAS-EX7-0010	37	Redacted to protect personal privacy.
PLSAS-EX7-0010	34	Redacted to protect personal privacy.
PLSAS_506	27	Redacted to protect personal privacy.
PLSAS_506	14	Redacted to protect personal privacy.
PLSAS_506	24	Redacted to protect personal privacy.
PLSAS_506	37	Redacted to protect personal privacy.
PLSAS_506	13	Redacted to protect personal privacy.
PLSAS_506	23	Redacted to protect personal privacy.
PLSAS_506	36	Redacted to protect personal privacy.
PLSAS_506	29	Redacted to protect personal privacy.
PLSAS_506	6	Redacted to protect personal privacy.
PLSAS-EX7-0012	3	Redacted to protect personal privacy.
PLSAS-EX7-0012	10	Redacted to protect personal privacy.
PLSAS-EX7-0012	17	Redacted to protect personal privacy.
PLSAS-EX7-0012	24	Redacted to protect personal privacy.
PLSAS-EX7-0012	2	Redacted to protect personal privacy.
PLSAS-EX7-0012	9	Redacted to protect personal privacy.
PLSAS-EX7-0012	16	Redacted to protect personal privacy.
PLSAS-EX7-0012	23	Redacted to protect personal privacy.
PLSAS-EX7-0013	25	Redacted to protect personal privacy.
PLSAS-EX7-0014	5	Redacted to protect personal privacy.
PLSAS-EX7-0016	23	Redacted to protect personal privacy.
PLSAS-EX7-0016	40	Redacted to protect personal privacy.
PLSAS-EX7-0016	4	Redacted to protect personal privacy.
PLSAS-EX7-0017	34	Redacted to protect personal privacy.